IN THE SUPREME COURT OF INDIA
CRIMINAL APPELLATE JURISDICTION
CRIMINAL APPEAL NO. 1265 OF 2017

Rajesh Sharma & Ors. ...Appellants
VERSUS
State of Uttar Pradesh & Anr. ...Respondents

CORAM:
HON'BLE MR. JUSTICE A.K. GOEL
HON'BLE MR. JUSTICE U.U. LALIT

JUDGMENT
A.K. GOEL, J.

1. The central question arising in this appeal is the need to check unwarranted arrests and curb the misuse of penal provisions in matrimonial conflicts. Section 498-A was enacted to protect women from harassment, but mechanical arrests without verification infringe personal liberty.

2. In the present case, an FIR was registered under Sections 498-A and 323 of the Indian Penal Code, 1860, along with provisions of the Dowry Prohibition Act, 1961, at Police Station Sadar, against the husband and four of his family members, including married sisters and parents residing at separate places.

6. The appellants approached the High Court of Judicature at Allahabad invoking Section 482 of the Code of Criminal Procedure, 1973, seeking to quash the summoning order and the criminal proceedings. The High Court, however, dismissed the petition summarily observing that factual issues cannot be decided at the threshold.

11. Having heard learned counsel for the parties and the learned Amicus Curiae, we are of the considered opinion that the approach of the High Court was flawed. Inherent power under Section 482 of the Code must be exercised to prevent misuse of statutory criminal machinery where allegations are vague and omnibus. A clear distinction must be drawn between active offenders and distant relatives roped in solely out of anger and bitterness.

14. The tendency of implicating all family members in matrimonial disputes has been repeatedly deprecated by this Court in several decisions including Preeti Gupta v. State of Jharkhand and Arnesh Kumar v. State of Bihar.

18. In respect of offenses punishable with imprisonment up to seven years, Parliament has enacted safeguards under Sections 41 and 41-A of the Code. The mandate of Section 41-A CrPC must be strictly adhered to by police authorities before any coercive step of arrest is taken. The police officer must satisfy himself on specified parameters regarding necessity of arrest and record reasons in writing.

20. When general allegations are made without attributing any specific overt role or date or circumstance against extended family members, forcing them to undergo trial is an assault on human dignity and judicial efficiency.

22. We accordingly issue the following directions:
(i) No automatic arrest shall be made in matrimonial complaints without prior preliminary enquiry by the Designated Officer.
(ii) Where family members reside outside the territorial jurisdiction, personal appearance should not ordinarily be insisted upon.

24. In the result, the appeal is partly allowed. The proceedings against Appellants 2 to 4 are hereby quashed, while Appellant 1 shall participate in the investigation under notice. The order of the High Court is modified in the above terms.

.....J.
(A.K. GOEL)

.....J.
(U.U. LALIT)
NEW DELHI;
JULY 27, 2017.